Policy

Procedural Fairness and Impartiality

Purpose

This policy provides clarification around the principles used to support procedural fairness and impartiality.

Application

The Quality and Safety Pharmacy Program (QSPP) is committed to fair assessment outcomes, quality improvement, closing the loop on feedback, transparent resolution of complaints and appeals, being impartial and correcting mistakes.

Compliments and Complaints

QSPP welcomes feedback in any format including but not limited to the QSPP Customer Satisfaction Survey, email, telephone, or formal correspondence. Each component of feedback, whether it be a compliment, or a complaint will be acknowledged and actioned as appropriate.

Complaints will be handled within the confines of confidentiality as agreed with the complainant. The nature of the complaint and who needs to be involved in the investigation, to reach a satisfactory outcome, will determine the degree and level of confidentiality and impartiality.

In exceptional circumstances where a complaint cannot be resolved within the documented timeframes, progress reports will be provided every 5 business days to the complainant until the complaint is resolved.

Complaints and appeals

Please see the Complaints matrix (below) for detail of escalation process and response times.

Category	Examples of Complaints	Time frame
Minor Complaints	Complaints: that can be solved almost immediately, such as: Internal processes, not receiving an invoice on time	Within five (5) business days
Complaints of a Serious Nature	Public complaints against a pharmacy Breach of QSPP rules Complaints against an Assessor or staff member **Sanction may also be applied – refer to Sanctions Policy*	Within thirty (30) business days or, if unable to be resolved within 30 business days, provide a response every five (5) business days until a resolution has been achieved
Complaints of a Highly Serious Nature	Community safety, Privacy Act, fraud, media escalation, professional practice, QSPP reputation at risk **Sanction may also be applied – refer to Sanctions Policy*	Within thirty (30) business days or, if unable to be resolved within 30 business days, provide a response every five (5) business days until a resolution has been achieved
Appeals	Appeals Decision made by QSPP that is appealed by a pharmacy	Three (3) months
Appeal disputes	Appeal Disputes External arbitration of appeal referred to JASANZ to manage accordingly	Three (3) months

Corrective Action Review Request

The Corrective Action Review (CAR) Request process provides QSPP pharmacies an avenue to recognise practices or processes that may alter from QSPP requirements however meet the intent of QSPP requirements. Pharmacy owners or authorised delegates should complete a CAR as soon as reasonable after the "non-conformance" has been issued, and before the action due date. A CAR is to be initiated via the QSPP Customer Portal against the relevant corrective action on the pharmacy's current assessment record. All evidence supporting the request should be provided at the time of submission.

If the application of the CAR is to be broader than an individual pharmacy (e.g. a banner group practice) then the application should be made in writing via email to interpretations@qspp.com. Alternative evidence acceptance may be applied based on satisfactorily meeting the intent of an individual requirement at a group level.

All CARs are considered on their merits by the QSPP Technical Advisor and may be referred to the Interpretations and Rulings Panel if further consultation is required, for example where precedent has not previously been set.

The Interpretations and Rulings Panel will consider:

- Whether the corrective action has been correctly raised, and
- If so, whether the intent of the requirement has been met.

Possible outcomes to CARs include:

Scenario	Outcome
Corrective Action incorrectly raised	Corrective Action withdrawn
Corrective Action correctly raised; intent of requirement not met due to circumstances outside of pharmacy control (e.g. fire, significant staff illness)	Corrective Action stands. Time Limited Concession applied to allow provisional accreditation to proceed within Program time frames, with individual action to be closed by modified due date.
Corrective Action correctly raised; intent of requirement met	Corrective Action stands Full Cycle Concession applied to close Corrective Action
Corrective Action correctly raised; intent of requirement not met	Corrective Action stands Concession not granted
Corrective Action correctly raised; evidence provided sufficient	Corrective Action remediated. Corrective Action Request closed

Interpretations and Rulings Panel

The Interpretations and Rulings Panel meets on an as needs basis to consider Corrective Action Review (CAR) Requests as well as any other queries that may be submitted to interpretations@qspp.com relating to the QSPP Requirements. Outcomes are sent via email to the primary email address the query or CAR is associated with – e.g. pharmacy email or head office email. Where relevant, responses to general queries will also be posted to the Knowledge Hub to assist all pharmacies in their interpretation of the requirements.

Appeals

A pharmacy owner or authorised delegate may lodge an appeal against appealable decisions as per the QSPP Program rules.

Appeals are considered within the QSPP's Appeals Matrix:

Appeal level	Scenario	Authority	Time frame
Level 1	Remedial review request (Corrective Action from QSPP Assessment)	Technical Advisor / Interpretations and Ruling Panel (if applicable)	5-15 business days
Level 1	An appeal not relevant to Corrective Action from QSPP Assessment	Customer Experience Manager	5-15 business days
Level 2	Appeals escalated from Level 1	QSPP Program Manager	5-15 business days
Level 3	Appeals escalated from Level 2	Head of Quality and Safety	2 to 30 business days
Level 4	Appeals escalated from Level 3	Impartiality Sub-Committee	2 to 30 business days
Level 5	Appeals escalated from Level 4	Clinical Governance Committee	Up to 3 months
Level 6	External arbitration	JASANZ	Up to 6 months

All appeals will initially be considered as a Level 1. In the event an appeal outcome is disputed, the matter will be escalated to the next level of the Appeals Matrix.

The outcome of appeals will not be determined by the person who made the original decision. In some cases, this may result in escalation of the appeal to the next level.

If a pharmacy is unhappy with the outcome of their appeal, they can submit a request to the Joint Accreditation System of Australia and New Zealand https://www.jasanz.org/contact-us

Conflict of Interest

Any decision resolving a complaint or appeal shall be made by, or reviewed and approved by, person(s) not involved in the certification activities related to the complaint or appeal.

If a staff member feels that they may have unfair bias in the decision-making process in relation to a complaint or appeal, they are required to declare their Conflict of Interest (COI) to4 their immediate manager and include a brief note of this in the relevant complaint or appeal file.

If a complaint concerns a staff member within the QSPP or EY Team, that person cannot be involved in decisions relating to the resolution of the complaint or appeal. Furthermore, if a QSPP or EY staff member, or an immediate family member of the aforementioned staff member has been employed by, provided consultancy to the client making the complaint or appeal, or about which the complaint is being made they also cannot be involved in decisions relating to the resolution of the complaint or appeal.

Related Documentation

Exceptional Circumstances Policy
Privacy Policy
Program Rules
QSPP Terms and Conditions
Sanctions Management Policy